

8. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY: ARMANINO LLP
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

9. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT (TO BE FILED BY DEFENDANTS AS THEY
STIPULATED)
FILED BY:
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

10. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: CSW CONSTRUCTION GROUP
TENTATIVE RULING:

Before the Court is Defendant CWS Construction Group's Motion to set Aside Default.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered that same date. On January 23, 2026, Defendant filed the instant motion to set aside.

The Court's docket shows Plaintiff filed her Opposition on March 20. No proof of service has been filed, however. Proof of service of papers must be filed with the Court at least five days prior to the hearing. (Cal. R. Ct. 3.1300(c).) Defendant on Reply notes that it was not served with the Opposition.

Normally, the Court would continue the hearing to allow time for the moving party to be properly served and substantively respond to the Opposition. As noted by Defendant, the Opposition does not include any legal authority or reasoned argument opposing Defendant's position. As such, the Court will rule on the Motion at this time.

Plaintiff is cautioned that she must comply with all applicable rules and must timely serve all papers on Defendant. Failure to do so may result in the Court disregarding Plaintiff's papers.

Standard

Defendant CWS first moves to set aside the default pursuant to Code of Civil Procedure section 473 (d). Code of Civil Procedure section 473(d) provides in relevant part:

The court may ... on motion of either party after notice to the other party, set aside any void judgment or order.

Defendant also moves to set aside pursuant to Code of Civil Procedure section 473 (b). Subdivision (b) "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Analysis

Defendant first argues that the default should be set aside pursuant to section 473(d) as the default is "void" as it relates to an inoperative pleading. As noted by Defendant, the Request for Default filed by Plaintiff indicates that it is being made with relation to the original complaint filed on September 29, 2025:

1. TO THE CLERK: On the complaint or cross-complaint filed

a. on (date):

9/29/2025

b. by (name):

Tadeusz Wyrzykowski

c. ☒ Enter default of defendant (names):

C S W Construction Group

As noted above, the operative complaint at the time was the FAC which was filed on October 20, 2025.

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon*, (1971) 3 Cal.3d 875, 884, quoting *Meyer v. State Board of Equalization* (1954) 42 Cal.2d 376, 384.) “The original ceases to ‘perform any function as a pleading.’” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215.) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading **or as a basis for judgment.**” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 emphasis added.)

As the original Complaint had no legal effect at the time the default was entered based upon it, given the filing of the FAC prior to the request for default, the default is void and cannot be enforced. As such, it must be set aside.

Conclusion

Defendant CWS Construction’s motion to set aside the default is **granted**. The default entered on January 20, 2026, is set aside. Defendant CWS Construction shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

11. 9:00 AM CASE NUMBER: MSC18-02413
CASE NAME: ZERIUS COLLINS VS. HASA, INC. A CALIFORNIA CORPORATION
*MOTION/PETITION TO COMPEL ARBITRATION CONFIRM FINAL ARBITRATION AWARD
FILED BY: GUERRERO, ALEX
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Alex Guerrero’s (Plaintiff) motion to confirm final arbitration award against Defendant Hasa, Inc.

For the following reasons, **Plaintiff Alex Guerrero’s motion to confirm final arbitration award is granted.**

Procedural Background

The arbitration award at issue stems from this action, which was filed by Plaintiff Zerius Collins (“Collins”) on November 29, 2018, in this Court (the “Action”) alleging a single cause of action for penalties under the Private Attorneys’ General Act (“PAGA”). On May 1, 2019, Plaintiff Collins filed a First Amended Complaint adding Plaintiff Alex Guerrero. Plaintiff Guerrero was employed by Defendant Hasa Inc at their Pittsburgh facility.

On November 3, 2021, the Court denied Defendant’s motion to compel Plaintiff’s claims to arbitration. While an appeal of the Court’s order was pending, the United States Supreme Court decided *Viking River Cruises, Inc. v. Moriana*. As a result, on April 19, 2023, the Parties stipulated that